

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.
Date Filed:

-----X
PAUL MC ALLISTER,

Plaintiff designates
KINGS County
As Place of Trial

Plaintiff,

-against-

The basis of venue is
Place of Incident

SUMMONS

THE CITY OF NEW YORK,
P.O. WALTER ROZENFELD (/Tax Reg #6460)
P.O. RICHARD SICURANZA (Tax Reg #21084)
P.O. "JOHN DOE" #1-7, (Shield #s Unknown)
(first and last name being fictitious and unknown,
persons intended being Police Officers and/or
personnel who were involved in the incident
of September 12, 2017)

Plaintiff resides at
235 Hoyt Street
Brooklyn, NY

Defendants.
-----X

To the above-named Defendant:

YOU ARE HEREBY SUMMONED to answer the Complaint in this
action and to serve a copy of your answer, or, if the Complaint is not served with this
Summons, to serve a Notice of Appearance, on the Plaintiff's attorney within 20 days
after the service of this summons, exclusive of the date of service (or within 30 days
after the service is complete if this summons is not personally delivered to you within
the State of New York); and in the case of your failure to appear or answer, judgment
will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
September 7, 2018

Yours, etc.,

BURNS & HARRIS, ESQS.
Attorneys for Plaintiff



ANDREW G. MEIER
233 Broadway – Suite 900
New York, New York 10279
(212) 393-1000

TO: CITY OF NEW YORK
100 Church Street
New York, NY 10007

P.O. WALTER ROZENFELD
(Tax Reg. #6460)
c/o 76th Pct.
191 Union Street
Brooklyn, NY

P.O. RICHARD SICURANZA
(Tax Reg. #21084)
c/o 76th Pct.
191 Union Street
Brooklyn, NY

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
PAUL MC ALLISTER,

Plaintiff,

Index No.:

-against-

VERIFIED
COMPLAINT

THE CITY OF NEW YORK,
P.O. WALTER ROZENFELD (Tax Reg #6460)
P.O. RICHARD SICURANZA (Tax Reg #21084)
P.O. "JOHN DOE" #1-7, (Tax Reg # Unknown)
(first and last name being fictitious and unknown,
person intended being police officer and/or
personnel who was involved in the incident
of September 12, 2017),

Defendants.

-----X
Plaintiff, PAUL MC ALLISTER, by his attorneys, BURNS & HARRIS, as and for
his Complaint herein, alleges, upon information and belief, that on September 12, 2017 in
the vicinity of 225 Hoyt Street, County of Kings, City and State of New York (unless
otherwise specified):

1. At all times relevant hereto, Defendant CITY OF NEW YORK is a
municipality existing under and by virtue of the laws of the State of New York.
2. At all times relevant hereto, defendant CITY OF NEW YORK operated,
maintained, managed, supervised and controlled a police department as part of and in
conjunction with its municipal functions.
3. At all times relevant hereto, Defendant P.O. WALTER ROZENFELD (Tax
Reg #6460), is employed as a police officer by the Police Department of the City of New
York.

4. At all times relevant hereto, defendant P.O. WALTER ROZENFELD (Tax Reg #6460) was upon information and belief, assigned to the 76th Pct. located at 191 Union Street, County of Kings, City and State of New York.

5. At all times relevant hereto, Defendant P.O. RICHARD SICURANZA (Tax Reg #21084), is employed as a police officer by the Police Department of the City of New York.

6. At all times relevant hereto, defendant P.O. RICHARD SICURANZA (Tax Reg #21084) was upon information and belief, assigned to the 76th Pct. located at 191 Union Street, County of Kings, City and State of New York.

7. At all times relevant hereto, Defendants P.O. "JOHN DOE" #1-7 (Tax Reg # unknown) are employed as police officers by the Police Department of the City of New York.

8. At all times relevant hereto, defendant P.O. "JOHN DOE" #1-7 (Tax Reg # unknown) were upon information and belief, assigned to the 76th Pct. located at 191 Union Street, County of Kings, City and State of New York.

9. At all times relevant hereto, the defendants were acting in the course of their employment by the CITY OF NEW YORK and POLICE DEPARTMENT OF THE CITY OF NEW YORK.

10. That all of the conditions precedent to the commencement of an action against the defendant CITY OF NEW YORK have been met in that a Notice of Claim was filed with the CITY OF NEW YORK on December 6, 2017 on behalf of plaintiff PAUL MC ALLISTER and within 90 days of the accrual of this cause of action; more than thirty (30) days have elapsed since the presentation of the Notice of Claim, and the claim remains

unadjusted by the CITY OF NEW YORK. This action has been commenced within one (1) year and ninety days from the accrual of this cause of action, and THE CITY OF NEW YORK has conducted a statutory hearing of the plaintiff PAUL MC ALLISTER on July 12, 2018.

FIRST CAUSE OF ACTION:
(POLICY OF NON-FEASANCE IN THE
PROTECTION OF PLAINTIFF PAUL MC ALLISTER's CIVIL RIGHTS)

11. At all times relevant hereto, defendant CITY OF NEW YORK employed the Defendant P.O. WALTER ROZENFELD, as a police officer in the New York City Police Department.

12. Upon information and belief, defendant P.O. WALTER ROZENFELD is a graduate of The Police Academy of the City of New York.

13. At all times relevant hereto, defendant CITY OF NEW YORK employed the Defendant P.O. RICHARD SICURANZA, as a police officer in the New York City Police Department.

14. Upon information and belief, defendant P.O. RICHARD SICURANZA is a graduate of The Police Academy of the City of New York

15. At all times relevant hereto, defendant CITY OF NEW YORK employed the Defendants P.O. "JOHN DOE" #1-7 as police officers in the New York City Police Department.

16. Upon information and belief, defendants P.O. "JOHN DOE" #1-7 are graduates of The Police Academy of the City of New York.

17. At all times relevant hereto, defendant CITY OF NEW YORK had the duty to competently and sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels.

18. Defendant CITY OF NEW YORK, had the duty to competently and sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels, the defendant officers to conform their conduct to a standard, established by law, for the protection of citizens, such as plaintiff, against unreasonable risk of harm by conducting themselves consistent with the Constitutional Rights of citizens and in such a manner as not to intentionally, wantonly, and/or negligently inflict injuries to citizens such as the plaintiff herein.

19. Each and all of the acts of the defendants alleged herein were done by the defendants, their agents, servants and/or employees, and each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, the City of New York and the County of Kings, and under the authority of their office as police officers of said State, City and County.

20. The defendant CITY OF NEW YORK failed to competently and sufficiently hire, train and retain the defendant officers to conform and conduct themselves for the protection of citizens, such as plaintiff, against unreasonable risk of harm by conducting themselves in such a manner as not to violate the Constitutional Rights, intentionally, wantonly and/or negligently inflict injuries to citizens such as the plaintiff herein.

21. That on or about September 12, 2017, and prior thereto, the CITY OF NEW YORK, in violation of 42 U.S.C. §1983 caused the plaintiff to be injured and damaged in failing to competently hire, train and retain police officers, including but not limited to the defendant officers to conform and conduct themselves for the protection of citizens, such as plaintiff, against unreasonable risk of harm by conducting themselves in such a manner as not to intentionally, wantonly and/or negligently inflict injuries to citizens such as plaintiff herein.

22. On or about September 12, 2017, the plaintiff, PAUL MC ALLISTER, was lawfully and properly present in the vicinity 225 Hoyt Street, County of Kings, City and State of New York.

23. On or about September 12, 2017, the defendant P.O. WALTER ROZENFELD was present and on duty in the vicinity of 225 Hoyt Street, County of Kings, City and State of New York, as part of his regular and official employment as a police officer for the defendant, THE CITY OF NEW YORK.

24. On or about September 12, 2017, the defendant P.O. RICHARD SICURANZA was present and on duty in the vicinity of 225 Hoyt Street, County of Kings, City and State of New York, as part of his regular and official employment as a police officer for the defendant, THE CITY OF NEW YORK.

25. On or about September 12, 2017, the defendants P.O. "JOHN DOE" #1-7 were present and on duty in the vicinity of 225 Hoyt Street, County of Kings, City and State of New York, as part of their regular and official employment as police officers for the defendant, THE CITY OF NEW YORK.

26. Commencing on September 12, 2017 at approximately 11:00 a.m. the individual defendant officers, assaulted and battered the plaintiff PAUL MC ALLISTER, without probable or just cause, grounds or provocation.

27. At all times mentioned herein, defendants, their agents, servants and employees deprived plaintiff of his rights and liberties as set forth in the Constitutions of the United States and of the State of New York, and threatened the plaintiff with the use of excessive and physical force and used excessive and physical force.

28. Following the use of excessive force, and said assault and battery, the defendant officers wrongfully detained and arrested the Plaintiff, PAUL MC ALLISTER at the 76th Precinct and imprisoned him, absent legal justification.

29. As a result of the aforesaid, plaintiff PAUL MC ALLISTER was deprived of his rights, liberties and freedoms under color of State Law in violation of 42 U.S.C. §1983.

30. As a further result of the deprivation of plaintiff PAUL MC ALLISTER's rights guaranteed to him by the First, Fourth, Fifth and Fourteenth Amendment to the United States Constitution and Sections 1, 2, 3, 4, 5, 8, 9, 11 and 12 of the New York State Constitution, he was caused to suffer injury and damage both mentally and physically, severe nervous shock and emotional distress and illness.

31. On or about September 12, 2017, in violation of the rights, privileges and immunities guaranteed to him under the Fourteenth Amendment to the United States Constitution and under color of State law, the defendant officers and each of them acting individually and in concert, in violation of 42 U.S.C. Section 1983, while

on duty, and while executing and implementing the policies, statements, ordinances, regulations and decisions officially adopted and promulgated by defendant, THE CITY OF NEW YORK and its police officers, detained the plaintiff, even though the defendants knew or should have known that the plaintiff was wholly innocent.

32. The false arrest and imprisonment of the plaintiff PAUL McALLISTER was caused by all of the defendants, their servants, agents and/or employees, without warrant, authority of law, or any reasonable cause or belief that there was probable cause to justify the confinement.

33. As a result of the aforesaid arrest, plaintiff PAUL McALLISTER was forcibly hand-cuffed, detained, transported and treated as a common criminal and incarcerated and imprisoned at various facilities owned, operated, maintained and controlled by the defendant CITY OF NEW YORK for approximately one day.

34. That all of the actions of the defendants, their agents, servants and/or employees were committed with recklessness and/or the intention to cause bodily and mental injury to the plaintiff; to arrest, restrain and imprison the plaintiff without his consent; that the plaintiff was at all times conscious of his arrest, did not consent to the assault, battery, false arrest, false imprisonment, and the assault, false arrest and imprisonment were not otherwise privileged.

35. The assault, battery, arrest and imprisonment of the plaintiff were negligent and/or reckless and/or intentional and were not justified by probable cause or other legal privilege and the defendants, their agents, servants and/or employees acting under the color of statute, ordinances, regulations, customs and usages of the State, City and County of New York, and under the authority of their office as police

officers for the CITY OF NEW YORK, and while executing and implementing the policies, statements, ordinances, regulations and decisions officially adopted and promulgated by defendant, THE CITY OF NEW YORK and it's police officers, falsely charged the plaintiff with Obstructing Governmental Administration in the 2nd degree, Resisting Arrest, Criminal Possession of a weapon in the 4th degree, unlawful possession of marijuana and other violations of the Penal Law of the State of New York, although the defendants, acting in such capacity, knew that such charges were false.

36. That the defendants, their agents, servants and employees failed to adequately and properly hire, retain, train, supervise, discipline or in any other way control the behavior and performance of the defendants, their agents, servants and/or employees; that in their hiring practices in the exercise of their police functions and their failure to enforce the laws of the State and City of New York is evidence of the carelessness, negligence, and reckless lack of cautious regard for the rights of the public, including plaintiff; and that the defendants exhibited a lack of that degree of due care which prudent and reasonable individuals would show in executing the duties of the defendants.

37. That all of the actions of the defendants, their agents, servants and/or employees were committed with the intention to cause bodily and mental injury to the plaintiff.

38. The assault and battery of the plaintiff was negligent, reckless and intentional and was not justified by probable cause or other legal privilege.

39. That the defendant CITY OF NEW YORK, their agents, servants and employees failed to adequately and properly hire, retain, train, supervise, discipline or in any other way control the behavior and performance of the defendants, their agents, servants and/or employees; that in their hiring practices in the exercise of their police functions and their failure to enforce the laws of the State and City of New York is evidence of the negligence, carelessness and reckless lack of cautious regard for the rights of the public, including plaintiff; and that the defendants exhibited a lack of that degree of due care which prudent and reasonable individuals would show in executing the duties of the defendants.

40. That the defendant CITY OF NEW YORK, its agents, servants and/or employees failed to hire, train, supervise, discipline or in any other way control the defendant officers in the exercise of their functions; that their failure to enforce the laws of the State of New York and the City of New York was and is carried out willfully, wantonly, maliciously and with such reckless disregard of citizens Constitutional Rights for the consequences so as to display a conscious disregard for the dangers of harm and injury to citizens of the State and City of New York, including plaintiff herein, while executing and implementing the policies, statements, ordinances, regulations and decisions officially adopted and promulgated by defendant, THE CITY OF NEW YORK and its' police officers.

41. That by reason of the aforesaid assault and battery, the plaintiff was deprived of his liberty, was subjected to great indignity, humiliation, pain and great distress of mind and body and was held up to scorn and ridicule, was injured in his character and reputation, was prevented from attending his usual business and

vocation, was injured in his reputation in the community and the said plaintiff has been otherwise damaged.

42. That at all times mentioned herein, the defendant police officers were employed in their respective capacities by the defendant CITY OF NEW YORK and were acting under the color of their official capacity and their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the CITY OF NEW YORK.

43. Although defendants knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant CITY OF NEW YORK has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

44. That the plaintiff was and is wholly innocent, and was forced by the defendants to submit to court proceedings.

45. The defendants, their agents, servants and/or employees, falsely and maliciously and without probable cause or provocation charged the plaintiff with Obstructing Governmental Administration in the 2nd degree, Resisting Arrest, Criminal Possession of a weapon in the 4th degree, unlawful possession of marijuana and other violations of the Penal Law of the State of New York.

46. That the said prosecution and criminal charges and hearings were instituted and procured by the defendants, their agents, servants and/or employees unlawfully and maliciously and without any reasonable or probable cause

whatsoever; that the commencement and/or continuation of the criminal proceedings by the defendants against the plaintiff was without probable cause, with actual malice and expected to be terminated in favor of the plaintiff.

47. That by reason of the aforesaid unlawful and malicious prosecution, the plaintiff was subjected to great indignity, humiliation, pain and great distress of mind and body and was held up to scorn and ridicule, was injured in his character and reputation, was prevented from attending his usual business and vocation, was injured in his reputation in the community and the said plaintiff has been otherwise damaged.

48. That the plaintiff PAUL McALLISTER did not commit any illegal act, either before or at the time he was falsely arrested and imprisoned, assaulted and battered, and maliciously prosecuted.

49. The unlawful and illegal conduct of the defendants, their agents, servants and/or employees and each of them, deprived plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York: The right to Freedom of Speech and Assembly under the 1st Amendments to the Constitution of the United States; the right of plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States; the right of plaintiff to be informed of the nature and cause of the accusation against him as secured to him under the Sixth and Fourteenth Amendments to the Constitution of the United States; and the right of plaintiff not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of

the laws secured by the Fourteenth Amendment to the Constitution of the United States and Sections 1, 2, 3, 4, 5, 8, 9, 11 and 12 of the New York State Constitution.

50. That the deprivation of plaintiff's constitutional rights was the result of a custom and/or policy adopted by THE CITY OF NEW YORK, and said policies, statements, ordinances, regulations and decisions officially executed, implemented, adopted and promulgated by defendants.

51. That the deprivation of plaintiff's constitutional rights was the result of the City of New York's custom and/or policy of using excessive force against innocents.

52. That the deprivation of plaintiff's constitutional rights was the result of the City of New York's custom and/or policy of unlawfully stopping and frisking citizens in the absence of any reasonable articulable suspicion that the plaintiff was violating any law or was a danger to other citizens or officers.

53. That the deprivation of plaintiff's constitutional rights was the result of the City of New York's custom and/or policy of arresting innocent persons in order to meet productivity goals.

54. That the deprivation of plaintiff's constitutional rights was the result of the City of New York's custom and/or policy of wrongfully arresting minority individuals.

55. That the deprivation of plaintiff's constitutional rights was the result of the City of New York's custom and/or policy of manufacturing evidence against individuals.

56. That the deprivation of plaintiff's constitutional rights was the result of the City of New York's custom and/or policy of using excessive physical force, assaulting and battering, individuals without probable cause or justification.

57. That the deprivation of plaintiff's constitutional rights was the result of the City of New York's custom and/or policy of failing to discipline officers for falsely and improperly using excessive physical force, assaulting and battering individuals without probable cause or justification.

58. That the deprivation of plaintiff's constitutional rights was the result of the City of New York's custom and/or policy of performing improper searches and seizures, in violation of the Federal and New York State Constitutions.

59. That the said customs and/or policies may be inferred from the existence of other similar civil rights actions that have been brought against The City of New York.

60. That by reason of the foregoing, this plaintiff was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, has suffered and continues to suffer serious and extreme mental and emotional anguish, distress and psychological damages and difficulties, some of which injuries are permanent in nature and duration, and plaintiffs will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiffs incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiffs have suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiffs will be unable to

pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to plaintiffs' great damage.

61. That on or about September 12, 2017, in violation of the rights, privileges and immunities guaranteed to him under the First, Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, Sections 1, 2, 3, 4, 5, 8, 9, 11 and 12 of the New York State Constitution and under the color of State law, the defendants acted individually and in concert causing the plaintiff to have been injured and damaged in an amount exceeding the jurisdictional limit of this Court, to be determined upon the trial of this action.

SECOND CAUSE OF ACTION:
(ASSAULT AND BATTERY OF PAUL MC ALLISTER)

62. Plaintiff, PAUL MC ALLISTER, repeats and realleges each and every allegation contained herein, as though the same were set forth at length herein.

63. On or about September 12, 2017, in the vicinity of 225 Hoyt Street, County of Kings, City and State of New York, the plaintiff PAUL MC ALLISTER was assaulted and battered by the defendant police officers and/or others acting in concert with them.

64. The force used by the defendant Officers was excessive, unnecessary, unwarranted and violent.

65. As a result of the defendant officers' aforementioned assault and battery of the plaintiff PAUL MC ALLISTER, plaintiff has been damaged in an amount exceeding the jurisdictional limit of this Court to be determined in a trial of this action.

THIRD CAUSE OF ACTION:
(FALSE ARREST AND IMPRISONMENT
OF PLAINTIFF PAUL MC ALLISTER)

66. Plaintiff, PAUL MC ALLISTER, repeats and realleges each and every allegation contained herein, as though the same were set forth at length.

67. On or about September 12, 2017, in the vicinity of 225 Hoyt Street, County of Kings, City and State of New York, the defendants, their agents, servants and/or employees wrongfully and falsely arrested, imprisoned and detained plaintiff PAUL MC ALLISTER, without any right or grounds therefore.

68. That on or about September 12, 2017, the defendants wrongfully and falsely accused and charged the plaintiff PAUL MC ALLISTER with Obstructing Governmental Administration in the 2nd degree, Resisting Arrest, Criminal Possession of a weapon in the 4th degree, unlawful possession of marijuana and other violations of the Penal Law of the State of New York.

69. That the said arrest and imprisonment was caused by the defendants, their agents, servants and/or employees without any warrant, probable cause, or other legal process, and without authority of the law, absent privilege, and without any reasonable cause or belief that the plaintiff, PAUL MC ALLISTER was in fact guilty of such crimes.

70. On or about September 12, 2017, the defendants and each of them acting individually and in concert and while on duty, arrested, detained and imprisoned the plaintiff even though the defendants knew or should have known that the plaintiff PAUL MC ALLISTER was wholly innocent of the criminal charges then and there filed against him.

71. While plaintiff was so engaged, as aforesaid, the defendants, their agents, servants and employees, wrongfully and unlawfully, against the plaintiff's wishes, without probable or reasonable cause, and on the sole charge, then made, charged that plaintiff

violated various sections of the Penal Law of the State of New York, arrested and imprisoned the plaintiff and with full force of arms, they forcibly and violently seized, assaulted and laid hold of and compelled him to go with the said defendant police officers to be detained and imprisoned at the 76th Precinct, County of Kings, City and State of New York, and continuing to other places and times, including, but not limited to, Central Booking and in a detention cell located in the Criminal Courts Building, County of Kings, where the plaintiff was further detained and imprisoned until such time as he was arraigned. Said constitutional violations were caused by a policy statement, ordinance, regulation or decision of defendant, THE CITY OF NEW YORK, adopted by said police officers.

72. That at all times relevant hereto, the defendants owed a duty directly to plaintiff to conform their conduct to a standard established by law for the protection of plaintiff.

73. That at all times relevant hereto, the defendants failed to act, protect and safeguard the plaintiff.

74. That at all times relevant hereto, the defendants breached their duty owed directly to the plaintiff which endangered the plaintiff's physical safety.

75. That the defendants, their agents, servants and/or employees acting within the scope of their authority and within the scope of their employment, detained and imprisoned the plaintiff even though the defendants, their agents, servants and/or employees had the opportunity to know or should have known, that the matters hereinbefore alleged, wrongfully, unlawfully, absent probable cause, and without a

sufficient charge having been made against the plaintiff, directed that the plaintiff be searched and placed in confinement at said locations.

76. That the plaintiff was wholly innocent of the said criminal charges and did not contribute in any way to the conduct of the defendants, their agents, servants and/or employees and were forced by the defendants to submit to the aforesaid arrest and imprisonment thereto entirely against his will.

77. That as a result of the aforesaid accusations made by the defendants, their agents, servants and/or employees acting under their employment and within the scope of their authority, made falsely, publicly, wickedly and maliciously, the plaintiff was compelled to appear before a Judge of the Criminal Court of the City of New York, County of Kings, to be arraigned.

78. That the defendants, their agents, servants and employees, as set forth on the aforementioned date, time and place, intended to confine the plaintiff; in that the plaintiff was conscious of the confinement; plaintiff did not consent to the confinement; and that the confinement was not otherwise privileged.

79. That by reason of the false arrest, imprisonment and detention of the plaintiff, plaintiff was subjected to great indignities, humiliation and ridicule, stripped-searched in being so detained, charged and prosecuted with various crimes, and greatly injured in his credit and circumstances and was then and there prevented and hindered from performing and transacting his necessary affairs and business and he was caused to suffer much pain in both mind and body, the loss of employment and the loss of employment opportunities.

80. That by reason of the foregoing, the plaintiff was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, have suffered and continue to suffer serious and extreme mental and emotional anguish, distress and psychological damages and difficulties, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to plaintiff's great damage.

81. By reason of his false arrest and imprisonment, the plaintiff has been damaged in an amount exceeding the jurisdictional limit of this Court, to be determined upon the trial of this action.

FOURTH CAUSE OF ACTION:
(MALICIOUS PROSECUTION OF
PLAINTIFF PAUL MC ALLISTER)

82. Plaintiff PAUL MC ALLISTER, repeats and realleges each and every allegation contained herein, as though the same were set forth at length herein.

83. That on or about September 12, 2017, at approximately 11:00 a.m. of that day, while plaintiff was lawfully and properly in the vicinity of 225 Hoyt Street, County of Kings, City and State of New York, and at subsequent times thereafter, including but not limited to the 76th Precinct, Central Booking and at a detention cell at the Criminal Court Building, County of Kings, City and State of New York, the defendants, their agents,

servants and employees maliciously prosecuted and detained plaintiff PAUL MC ALLISTER, without any just right or grounds therefore.

84. That the plaintiff was and is wholly innocent, and was forced by the defendants to submit to court proceedings.

85. That the defendants, their agents, servants and/or employees, falsely and maliciously and without probable cause or provocation charged the plaintiff with various sections of the Penal Law of the State of New York.

86. That the defendants, their agents, servants and/or employees acting in the performance of their employment and within the scope of their authority, testified falsely and withheld vital information before a Judge of the Criminal Court of the City of New York, County of Kings.

87. That the said prosecution and criminal charges and hearings were instituted and procured by the defendants, their agents, servants and/or employees unlawfully and maliciously and without any reasonable or probable cause whatsoever; that the commencement and/or continuation of the criminal proceedings by the defendants against the plaintiff was without probable cause, with actual malice and was terminated in favor of the plaintiff, in violation of the rights, privileges and immunities guaranteed to him under the Fourteenth Amendment to the United States Constitution and under color of State law, the defendant officers and each of them acting individually and in concert, in violation of 42 U.S.C. Section 1983, while on duty, and while executing and implementing the policies, statements, ordinances, regulations and decisions officially adopted and promulgated by defendant, THE CITY OF NEW YORK and its police officers.

88. That by reason of the aforesaid unlawful and malicious prosecution, the plaintiff was deprived of his liberty, was subjected to great indignity, humiliation, pain and great distress of mind and body and was held up to scorn and ridicule, was injured in his character and reputation, was prevented from attending his usual business and vocation, was injured in his reputation in the community and the said plaintiff has been otherwise damaged.

89. As a result of the aforesaid malicious prosecution, the plaintiff, PAUL MC ALLISTER has been damaged in an amount exceeding the jurisdictional limit of this Court, to be determined upon the trial of this action.

FIFTH CAUSE OF ACTION:
(COMMON LAW NEGLIGENCE)

90. Plaintiff PAUL MC ALLISTER, repeats and realleges each and every allegation contained herein, as though the same were set forth at length herein.

91. The defendant, CITY OF NEW YORK, was negligent in its operation, management, supervision and control of their Police Department; in not providing adequate training of defendant police officers while at the Police Academy; in their supervision of defendant police officers while assigned to precincts; in failing to provide adequate supervision of defendant police officers during their training at the Police Academy.

92. That the defendants had a duty to use reasonable care in the stopping of plaintiff.

93. The defendant P.O. WALTER ROZENFELD was negligent in failing to use reasonable care in the stopping of the plaintiff, PAUL MC ALLISTER on or about September 12, 2017.

94. The defendant P.O. RICHARD SICURANZA was negligent in failing to use reasonable care in the stopping of the plaintiff, PAUL MC ALLISTER on or about September 12, 2017.

95. The defendants P.O. "JOHN DOE" #1-7 were negligent in failing to use reasonable care in the stopping of the plaintiff, PAUL MC ALLISTER on or about September 12, 2017.

96. That by reason of the foregoing, the plaintiff was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, has suffered and continues to suffer serious and extreme mental and emotional anguish, distress and psychological damages and difficulties, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to plaintiff's great damage.

97. By reason of the negligence of the defendants, the plaintiff PAUL MC ALLISTER, has been damaged in an amount exceeding the jurisdictional limit of this Court, to be determined upon the trial of this action.

SIXTH CAUSE OF ACTION:
PLAINTIFF PAUL MC ALLISTER'S VIOLATION OF RIGHT TO
BE FREE FROM UNREASONABLE SEARCHES
AND SEIZURES UNDER THE CONSTITUTION
OF THE STATE OF NEW YORK

98. Plaintiff, PAUL MC ALLISTER, repeats and realleges each and every allegation contained herein as though the same were set forth at length herein.

99. On or about September 12, 2017, in the vicinity of 225 Hoyt street, County of Kings, City and State of New York, in violation of the rights, privileges and immunities guaranteed to him under the Constitution of the State of New York, the plaintiff PAUL MC ALLISTER, was unlawfully searched and seized by the defendant police officers and/or others acting in concert with them, when said defendant police officers and/or others acting in concert with them, and each of them acting individually and in concert, while on duty, detained and searched the plaintiff PAUL MC ALLISTER, absent a showing of reasonable articulable suspicion, even though the defendants knew or should have known that the plaintiff was wholly innocent.

100. That by reason of the foregoing, the plaintiff was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, have suffered and continue to suffer serious and extreme mental and emotional anguish, distress and psychological damages and difficulties, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has suffered and in

the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to plaintiff's great damage.

101. That by reason of his unlawful search and seizure, the plaintiff, PAUL MC ALLISTER, has been damaged in an amount exceeding the jurisdictional limits of this Court, to be determined upon the trial of this action.

SEVENTH CAUSE OF ACTION:
USE OF EXCESSIVE FORCE

102. Plaintiff, PAUL MC ALLISTER, repeats and realleges each and every allegation contained herein as though the same were set forth at length herein.

On or about September 12, 2017, in the vicinity of 225 Hoyt Street, County of Kings, City and State of New York, the plaintiff PAUL MC ALLISTER was assaulted and battered by the defendant police officers and/or others acting in concert with them.

103. The force used by the defendant Officers was excessive, unnecessary, unwarranted and violent.

104. That at all times mentioned herein, the defendant police officers were employed in their respective capacities by the defendant CITY OF NEW YORK and were acting under the color of their official capacity and their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the CITY OF NEW YORK.

105. Defendants official policy, custom, practice or procedure violated plaintiff's constitutional rights and was the policy, custom, practice and procedure persistent and widespread in the department, and said policy, statement, ordinance,

regulation and decision was officially adopted and promulgated by defendant, THE CITY OF NEW YORK and executed and implemented by it's police officers.

106. As a result of the defendant officers' aforementioned use of excessive force on the plaintiff PAUL MC ALLISTER, plaintiff has been damaged in an amount exceeding the jurisdictional limit of this Court to be determined in a trial of this action.

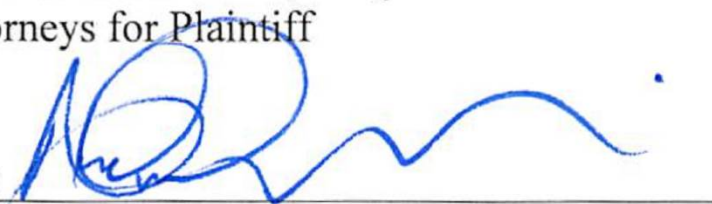
WHEREFORE, plaintiff demands judgment against the defendants on Each Cause of Action in amounts to be determined upon the trial of this action, together with interest and the costs and disbursements of this action.

Additionally, plaintiffs demand in respect of all Causes of Action, damages both compensatory, punitive, and attorney fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
September 7, 2018

Yours, etc.

BURNS & HARRIS, ESQ.
Attorneys for Plaintiff

BY: 

ANDREW G. MEIER
233 Broadway, Suite 900
New York, NY 10279
212 393-1000

ATTORNEY'S VERIFICATION

ANDREW G. MEIER, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at BURNS & HARRIS, attorneys of record for Plaintiff, PAUL McALLISTER. I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except as to those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

I make the foregoing affirmation because Plaintiff is not presently in the county wherein I maintain my offices.

DATED: New York, New York
September 7, 2018



ANDREW G. MEIER

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

PAUL MC ALLISTER,

Plaintiff,

-against-

THE CITY OF NEW YORK,
P.O. WALTER ROZENFELD (Tax Reg #6460)
P.O. RICHARD SICURANZA (Tax Reg #21084)
P.O. "JOHN DOE" #1-7, (Tax Reg # Unknown)
(first and last name being fictitious and unknown,
person intended being police officer and/or
personnel who was involved in the incident
of September 12, 2017),

Defendants.

SUMMONS AND VERIFIED COMPLAINT

BURNS & HARRIS
Attorneys for Plaintiff
233 Broadway, Suite 900
New York, New York 10279
(212) 393-1000

